

POWER PURCHASE AGREEMENT

BETWEEN

AL DHAFRA SOLAR ENERGY LLC

(as Seller)

AND

ABU DHABI DISTRIBUTION COMPANY (ADDC)

(as Buyer)

PROJECT: AL DHAFRA 250 MW SOLAR PHOTOVOLTAIC INDEPENDENT POWER PROJECT

EXECUTION DATE: March 15, 2024

EFFECTIVE DATE: April 1, 2024

TERM: Twenty-Five (25) Years from the Commercial Operation Date

CONTRACT REFERENCE: ADDC-PPA-2024-0315-SOLAR

THIS POWER PURCHASE AGREEMENT (hereinafter referred to as the "Agreement") is entered into on the 15th day of March, 2024 (the "Execution Date"),

BETWEEN:

(1) AL DHAFRA SOLAR ENERGY LLC, a limited liability company incorporated and existing under the laws of the Emirate of Abu Dhabi, United Arab Emirates, having its registered office at Plot C-42, Al Dhafra Industrial Zone, Abu Dhabi, United Arab Emirates, P.O. Box 94837, and registered with the Abu Dhabi Department of Economic Development under Commercial License No. CN-3489271 (hereinafter referred to as the "Seller"); and

(2) ABU DHABI DISTRIBUTION COMPANY (ADDC), a public joint stock company incorporated and existing under the laws of the Emirate of Abu Dhabi, United Arab Emirates, having its registered office at Khalifa Business Park, Abu Dhabi, United Arab Emirates, P.O. Box 219, and regulated by

the Department of Energy (DoE) of Abu Dhabi under License No. DoE/DL/2023/0084 (hereinafter referred to as the "Buyer").

The Seller and the Buyer are hereinafter collectively referred to as the "Parties" and individually as a "Party".

RECITALS

WHEREAS, the Government of Abu Dhabi, through the Abu Dhabi Department of Energy ("DoE"), has established a regulatory framework to promote the development of renewable energy generation capacity within the Emirate of Abu Dhabi, consistent with the UAE Energy Strategy 2050 and Abu Dhabi's commitment to achieving net-zero carbon emissions by 2050;

WHEREAS, the Seller has been selected through a competitive international tender process conducted by the Emirates Water and Electricity Company (EWEC) and the Abu Dhabi Department of Energy to develop, finance, construct, own, and operate a 250 MW (AC) solar photovoltaic power generation facility (the "Facility") located in the Al Dhafra region of the Emirate of Abu Dhabi;

WHEREAS, the Seller has secured all necessary development rights, land use agreements, and preliminary approvals from the relevant governmental authorities for the development and operation of the Facility;

WHEREAS, the Buyer is a licensed electricity distribution company in the Emirate of Abu Dhabi, authorized to purchase electricity from independent power producers and distribute the same to end consumers within its licensed distribution area;

WHEREAS, the Buyer desires to purchase, and the Seller desires to sell, the entire net electrical output of the Facility on the terms and conditions set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants, representations, warranties, and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

ARTICLE 1: DEFINITIONS AND INTERPRETATION

1.1 DEFINITIONS

In this Agreement, unless the context otherwise requires, the following capitalized terms shall have the meanings ascribed to them below:

"Actual Output" means the actual net electrical energy (expressed in MWh) delivered by the Seller to the Delivery Point during any given period, as measured by the Revenue Meters, net of all Station Service Loads and transformation losses within the Facility.

"Adjusted Metered Output" means the Actual Output as adjusted for any Deemed Generation amounts, metering errors, or other corrections as provided for in this Agreement.

"Affiliate" means, with respect to any Person, any other Person that directly or indirectly controls, is controlled by, or is under common control with, such Person. For purposes of this definition, "control" means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a Person, whether through ownership of voting securities, by contract, or otherwise; and the terms "controlled by" and "under common control with" shall be construed accordingly.

"Annual Contract Quantity" or "ACQ" means the expected annual net electrical energy output of the Facility, equal to four hundred and seventy-five gigawatt-hours (475 GWh) per Contract Year, subject to adjustment for Degradation in accordance with Schedule 1 and the terms of this Agreement.

"Applicable Law" means all laws, statutes, regulations, rules, orders, decrees, judgments, permits, licenses, authorizations, directions, and requirements of any Governmental Authority having jurisdiction over the Parties, the Facility, or the performance of obligations under this Agreement, as in effect from time to time.

"Availability" means, for any period, the ratio (expressed as a percentage) of (a) the number of hours during such period in which the Facility is capable of generating and delivering electrical energy to the Delivery Point (whether or not the Facility actually generates or delivers electrical energy during such hours) to (b) the total number of hours in such period, excluding Excused Hours.

"Availability Guarantee" shall have the meaning set forth in Article 6.1.

"Base Tariff" means the price per kilowatt-hour payable by the Buyer to the Seller for Net Electrical Output delivered at the Delivery Point, as set forth in Article 4.1 and Schedule 4 hereto.

"Billing Period" means each calendar month during the Term, or, for the first and last Billing Periods, the portion of a calendar month from the Commercial Operation Date or to the expiration or termination date, as applicable.

"Business Day" means any day other than a Friday, Saturday, or a public holiday in the Emirate of Abu Dhabi, United Arab Emirates.

"Buyer Default" shall have the meaning set forth in Article 13.2.

"Capacity" means the nominal net alternating current (AC) generating capacity of the Facility, equal to two hundred and fifty megawatts (250 MW AC), as measured at the Delivery Point.

"Capacity Factor" means, for any period, the ratio of the Actual Output during such period to the product of the Capacity multiplied by the number of hours in such period.

"Change of Law" means the enactment, promulgation, amendment, repeal, or modification of any Applicable Law, or the imposition of any new Applicable Law, or any change in the official interpretation or application of any Applicable Law by any Governmental Authority, in each case after the Execution Date, that directly and materially affects the Seller's costs of developing, financing, constructing, owning, operating, or maintaining the Facility, or the Seller's ability to perform its obligations under this Agreement.

"Closing Date" means the date upon which all Conditions Precedent set forth in Article 2.3 have been satisfied or waived in accordance with this Agreement.

"Commercial Operation" means the status achieved by the Facility when all of the conditions for the achievement of Commercial Operation as specified in Article 2.5 have been satisfied.

"Commercial Operation Date" or "COD" means the date on which the Facility achieves Commercial Operation, as certified by the Independent Engineer and acknowledged by both Parties, which shall be no later than the Long-Stop Date unless extended in accordance with this Agreement.

"Conditions Precedent" shall have the meaning set forth in Article 2.3.

"Confidential Information" shall have the meaning set forth in Article 18.1.

"Construction All Risks Insurance" shall have the meaning set forth in Article 10.1(a).

"Contract Year" means each period of twelve (12) consecutive calendar months commencing on the Commercial Operation Date or any anniversary thereof during the Term. The first Contract Year shall commence on the Commercial Operation Date.

"Contracted Capacity" means two hundred and fifty megawatts (250 MW AC).

"CPI" means the Consumer Price Index (All Items) for the United States, as published by the U.S. Bureau of Labor Statistics, or any successor index thereto. If such index is discontinued or materially modified, the Parties shall agree upon a replacement index that most closely approximates the original index.

"Cure Period" shall have the meaning set forth in Article 13.4.

"Curtailement" means any reduction, interruption, or cessation of the Seller's delivery of Net Electrical Output to the Delivery Point due to actions or instructions by the Buyer, the Grid Operator, or any Governmental Authority, other than reductions caused by a Seller Default, Seller's failure to comply with the Grid Code, or Force Majeure.

"Curtailement Energy" means the electrical energy (in MWh) that the Facility would have generated and delivered to the Delivery Point but for Curtailement, as calculated in accordance with Article 7.

"Deemed Generation" means the quantity of electrical energy (in MWh) that the Facility would have generated and delivered to the Delivery Point during a period of Compensable Curtailement, Force Majeure affecting the Buyer or the Grid, or other excused events as specified in this Agreement, calculated using the methodology set forth in Article 7.2.

"Default Interest Rate" means a rate per annum equal to the Secured Overnight Financing Rate (SOFR) as published by the Federal Reserve Bank of New York (or any successor administrator) plus two percent (2%), calculated on a daily compounding basis for each day of delay.

"Degradation Rate" means the expected annual reduction in the Facility's energy output capability due to the natural aging and wear of the solar modules and other equipment, as specified in Schedule 1 (Section S1.6).

"Delivery Point" means the point of interconnection between the Facility's

step-up substation and the Buyer's 132 kV transmission network at the Al Dhafra 132 kV Substation, as more particularly described in Article 9 and Schedule 2.

"Dispatch Instructions" means any instruction, direction, or order issued by the Buyer or the Grid Operator to the Seller to increase, decrease, or cease the generation or delivery of electrical energy from the Facility.

"Effective Date" means April 1, 2024.

"Electrical Interconnection Facilities" means the electrical equipment, lines, cables, transformers, switchgear, protection systems, metering equipment, and other facilities required to interconnect the Facility with the Buyer's transmission network at the Delivery Point.

"Emergency" means any condition or situation that, in the reasonable judgment of the Grid Operator or the Buyer, constitutes an imminent threat to the safety of persons, damage to property, or the security, integrity, or reliability of the electrical grid.

"Environmental Approval" means any approval, permit, license, consent, clearance, or authorization required under any Applicable Law relating to the protection of the environment, including without limitation approvals related to environmental impact assessments, waste management, water use, air quality, and habitat protection.

"Excused Hours" means hours during which the Facility is unable to generate or deliver electrical energy due to: (a) Force Majeure; (b) Compensable Curtailment; (c) Scheduled Maintenance approved by the Buyer; or (d) Grid unavailability not caused by the Seller.

"Facility" means the 250 MW AC solar photovoltaic power generation facility, including all solar modules, inverters, trackers, electrical collection systems, step-up substation, and all associated balance-of-plant equipment and infrastructure located at the Site, as more particularly described in Schedule 1.

"Financial Close" means the date on which all conditions precedent to the initial drawdown under the Seller's financing arrangements for the Facility have been satisfied or waived, and the initial funding under such financing arrangements has occurred.

"Force Majeure" or "Force Majeure Event" shall have the meaning set forth in Article 11.1.

"Good Utility Practice" means the practices, methods, standards, and acts that would be employed by a reasonably prudent operator of solar photovoltaic power generation facilities of the type, size, and nature similar to the Facility, acting in accordance with Applicable Law, applicable reliability standards, the Grid Code, and equipment manufacturers' recommendations and guidelines.

"Governmental Authority" means any federal, national, emirate, local, or municipal government, any political subdivision thereof, any governmental department, commission, board, bureau, agency, regulatory authority, instrumentality, or judicial body, in each case having jurisdiction over the relevant Party, the Facility, or the performance of obligations under this Agreement.

"Grid Code" means the grid code, distribution code, and all associated technical standards, rules, procedures, and guidelines issued by EWEC, ADDC, TRANSCO, or any successor grid operator, as in effect from time to time, that govern the connection to and operation of the electrical grid in the Emirate of Abu Dhabi.

"Grid Operator" means TRANSCO (Abu Dhabi Transmission and Despatch Company) or any successor entity responsible for the operation and dispatch of the electrical transmission grid in the Emirate of Abu Dhabi.

"Guaranteed Availability" means an annual Availability of not less than ninety-eight percent (98%), as measured over each Contract Year.

"Independent Engineer" means a reputable, independent engineering firm appointed by agreement of the Parties (or, failing agreement, by the appointing authority specified in Article 16) to perform the functions assigned to the Independent Engineer under this Agreement.

"Insurance Proceeds" means any and all amounts paid or payable to or for the benefit of the Seller under any insurance policy maintained in accordance with Article 10.

"Intellectual Property Rights" means all patents, trademarks, service marks, trade names, copyrights, trade secrets, know-how, and other proprietary rights.

"Lender" means any bank, financial institution, or other Person that provides debt financing or refinancing for the development, construction, or operation of the Facility, including bondholders or noteholders.

"Letter of Credit" or "LC" shall have the meaning set forth in Article 14.1.

"Liquidated Damages" shall have the meaning set forth in Article 6.

"Long-Stop Date" means December 31, 2026, as may be extended pursuant to the terms of this Agreement, by which date the Facility must achieve Commercial Operation.

"Material Adverse Effect" means any event, condition, or circumstance that, individually or in the aggregate, has or would reasonably be expected to have a material adverse effect on: (a) the financial condition, business, or operations of a Party; (b) the ability of a Party to perform its material obligations under this Agreement; or (c) the validity or enforceability of this Agreement or the rights or remedies of the other Party hereunder.

"Metering Equipment" shall have the meaning set forth in Article 5.

"Minimum Annual Delivery" means the minimum annual net electrical energy that the Seller is required to deliver to the Delivery Point, equal to four hundred and seventy-five gigawatt-hours (475 GWh) per Contract Year, subject to adjustment for Degradation as set out in Schedule 1.

"MW" means megawatt of alternating current capacity unless otherwise specified.

"MWh" means megawatt-hour of electrical energy.

"Net Electrical Output" means the gross electrical energy generated by the Facility, less the Station Service Loads, auxiliary consumption, and transformation losses within the Facility, as measured at the Delivery Point by the Revenue Meters.

"Operating Period" means the period commencing on the Commercial Operation Date and ending on the expiration or earlier termination of this Agreement.

"Parent Company Guarantee" shall have the meaning set forth in Article 14.3.

"Performance Ratio" means the ratio of the Actual Output to the theoretical energy output that the Facility would produce if all modules operated at their nominal rated capacity under the actual irradiance conditions received during the measurement period, as measured and calculated in accordance with IEC 61724.

"Performance Ratio Guarantee" shall have the meaning set forth in Article 6.2.

"Permitted Transfer" shall have the meaning set forth in Article 15.2.

"Person" means any individual, corporation, company, partnership, limited liability company, joint venture, trust, unincorporated association, or other entity, including any Governmental Authority.

"Prudent Utility Practice" has the same meaning as Good Utility Practice.

"Revenue Meters" shall have the meaning set forth in Article 5.1.

"Scheduled Maintenance" means the planned maintenance of the Facility or any component thereof, carried out in accordance with the annual maintenance schedule submitted by the Seller and approved by the Buyer in accordance with Article 6.5.

"Seller Default" shall have the meaning set forth in Article 13.1.

"Site" means the plot of land on which the Facility is located, as described in Schedule 2.

"SOFR" means the Secured Overnight Financing Rate as published by the Federal Reserve Bank of New York (or any successor administrator thereof).

"Solar Resource" means the global horizontal irradiance (GHI) and direct normal irradiance (DNI) measured at the Site.

"Station Service Loads" means the electrical energy consumed within the Facility for its own operation, including energy consumed by inverters, tracking systems, SCADA systems, lighting, HVAC, and other auxiliary equipment.

"TAQA" means Abu Dhabi National Energy Company PJSC, the parent company of the Seller or its principal shareholder.

"Term" shall have the meaning set forth in Article 2.1.

"Termination Payment" shall have the meaning set forth in Article 13.5.

"Testing" means the commissioning tests, performance tests, reliability tests, and other tests required to be completed prior to the achievement of Commercial Operation, as specified in Schedule 1.

1.2 INTERPRETATION

(a) Unless the context otherwise requires, words importing the singular include the plural and vice versa, words importing a gender include all genders, and references to any Party include that Party's successors and permitted assigns.

(b) The headings in this Agreement are for convenience of reference only and shall not affect its interpretation.

(c) References to "Articles," "Sections," "Schedules," and "Annexes" are references to articles, sections, schedules, and annexes of this Agreement, unless otherwise specified.

(d) The Schedules and Annexes attached hereto form an integral part of this Agreement and are incorporated herein by reference.

(e) In the event of any conflict or inconsistency between the main body of this Agreement and any Schedule or Annex, the main body of this Agreement shall prevail unless the Schedule or Annex expressly states otherwise.

(f) The words "include," "includes," and "including" shall be deemed to be followed by the phrase "without limitation."

(g) All monetary amounts expressed in this Agreement are in United States Dollars (USD) unless otherwise specified.

ARTICLE 2: TERM AND CONDITIONS PRECEDENT

2.1 TERM

This Agreement shall become effective on the Effective Date and, unless earlier terminated in accordance with its terms, shall remain in full force and effect for a period of twenty-five (25) years from the Commercial Operation Date (the "Term"). Notwithstanding the foregoing, the obligations of the Parties set forth in Articles 1 through 5 of this Agreement (to the extent applicable to the pre-COD period), and all other provisions that by their nature are intended to apply prior to the Commercial Operation Date, shall become effective on the Effective Date.

2.2 LONG-STOP DATE

(a) The Facility shall achieve Commercial Operation no later than

December 31, 2026 (the "Long-Stop Date"). If the Facility fails to achieve Commercial Operation by the Long-Stop Date, except to the extent caused by Force Majeure, Buyer Default, or Change of Law, the Buyer shall have the right to terminate this Agreement by giving not less than thirty (30) Business Days' written notice to the Seller.

(b) The Long-Stop Date shall be extended day-for-day for any delay caused by: (i) Force Majeure; (ii) Buyer Default; (iii) Change of Law; (iv) failure by the Grid Operator to complete its interconnection obligations within the timeframe specified in Article 9; or (v) any other event or circumstance expressly stated in this Agreement to entitle the Seller to an extension of the Long-Stop Date; provided, however, that the aggregate extension of the Long-Stop Date pursuant to this Section 2.2(b) shall not exceed twenty-four (24) months.

2.3 CONDITIONS PRECEDENT

The obligations of the Parties under this Agreement (other than those that are expressly stated to take effect on the Execution Date or the Effective Date) shall be subject to the satisfaction or waiver of the following conditions precedent (the "Conditions Precedent") on or before the Closing Date:

(a) Governmental Approvals: The Seller shall have obtained all material governmental approvals, permits, licenses, and authorizations required for the development, construction, and operation of the Facility, including without limitation:

- (i) the generation license from the Department of Energy of Abu Dhabi;
- (ii) the environmental clearance from the Environment Agency Abu Dhabi (EAD);
- (iii) the building permits from the Abu Dhabi Municipality;
- (iv) the water and wastewater discharge permits;
- (v) the aviation safety clearance from the General Civil Aviation Authority; and
- (vi) any other permits required under Applicable Law.

(b) Land Rights: The Seller shall have executed a land lease agreement or usufruct right with the relevant Governmental Authority for the Site, granting the Seller exclusive use and possession of the Site for a period not less than the Term plus five (5) years.

(c) Interconnection Agreement: The Seller and the Grid Operator shall have executed a grid connection agreement on terms reasonably acceptable to the Buyer, providing for the interconnection of the Facility to the Grid at the

Delivery Point.

(d) Insurance: The Seller shall have obtained and delivered to the Buyer evidence of all insurance policies required under Article 10, in form and substance satisfactory to the Buyer.

(e) Credit Support: The Seller shall have delivered to the Buyer the Letter of Credit and the Parent Company Guarantee in accordance with Article 14.

(f) Financing: The Seller shall have achieved Financial Close with respect to the financing of the Facility.

(g) EPC Contract: The Seller shall have executed an engineering, procurement, and construction ("EPC") contract for the Facility with a reputable EPC contractor.

(h) O&M Arrangements: The Seller shall have entered into, or shall have demonstrated it has the capability to perform, all necessary operation and maintenance arrangements for the Facility.

2.4 WAIVER OF CONDITIONS PRECEDENT

Any Condition Precedent may be waived in whole or in part by written agreement of the Parties. Such waiver shall not prejudice any other right or remedy of the waiving Party under this Agreement.

2.5 COMMERCIAL OPERATION DATE

The Facility shall be deemed to have achieved Commercial Operation when the following conditions have been satisfied:

(a) The Facility has been constructed and commissioned in accordance with the Technical Specifications set forth in Schedule 1;

(b) The Facility has successfully completed all Testing required under Schedule 1, as certified by the Independent Engineer;

(c) The Revenue Meters have been installed, tested, and calibrated in accordance with Article 5;

(d) All interconnection facilities have been completed and energized, and the Facility is connected to the Grid at the Delivery Point;

(e) The Seller has obtained all governmental approvals, permits, and licenses

required for the commercial operation of the Facility;

(f) The Independent Engineer has issued a certificate confirming that the Facility has achieved a Capacity of not less than ninety-five percent (95%) of the Contracted Capacity; and

(g) The Facility has operated continuously for a period of not less than seventy-two (72) hours at a minimum of eighty percent (80%) of the Contracted Capacity during daylight hours.

ARTICLE 3: SALE AND PURCHASE OF ENERGY

3.1 OBLIGATION TO SELL AND PURCHASE

(a) Subject to the terms and conditions of this Agreement, the Seller shall sell and deliver, and the Buyer shall purchase and accept, all Net Electrical Output generated by the Facility and delivered to the Delivery Point during the Term.

(b) The Buyer shall be obligated to purchase one hundred percent (100%) of the Net Electrical Output delivered by the Seller to the Delivery Point, subject only to Curtailment in accordance with Article 7 and Force Majeure events.

3.2 CONTRACTED CAPACITY

The Contracted Capacity of the Facility shall be two hundred and fifty megawatts (250 MW AC). The Seller shall not increase the Contracted Capacity of the Facility without the prior written consent of the Buyer.

3.3 MINIMUM ANNUAL DELIVERY

(a) The Seller shall use commercially reasonable efforts to generate and deliver to the Delivery Point in each Contract Year a Net Electrical Output of not less than four hundred and seventy-five gigawatt-hours (475 GWh) (the "Minimum Annual Delivery"), subject to adjustment for Degradation as provided in Schedule 1.

(b) For the avoidance of doubt, the Minimum Annual Delivery shall be reduced proportionally for any partial Contract Year and shall be adjusted downward

for: (i) periods of Compensable Curtailment; (ii) Force Majeure events; (iii) Scheduled Maintenance approved by the Buyer; and (iv) any other events expressly excused under this Agreement.

3.4 SHAPE OF DELIVERY

The Seller acknowledges that the Facility's energy output will be intermittent and variable in nature, dependent upon the Solar Resource at the Site. The Buyer shall accept the Net Electrical Output in whatever temporal pattern it is naturally produced by the Facility, and there shall be no obligation on the Seller to deliver energy in any particular hourly, daily, weekly, or seasonal profile or shape.

3.5 EXCLUSIVITY

During the Term, the Seller shall not sell, deliver, or commit to sell or deliver the Net Electrical Output or any portion thereof to any Person other than the Buyer, except with the prior written consent of the Buyer or as otherwise expressly permitted under this Agreement.

ARTICLE 4: TARIFF AND PAYMENT

4.1 BASE TARIFF

(a) The Buyer shall pay to the Seller, for each MWh of Net Electrical Output delivered at the Delivery Point and recorded by the Revenue Meters, the Base Tariff, which for Contract Years 1 through 5 shall be equal to seventeen United States Dollars and eighty-six cents per megawatt-hour (USD 17.86/MWh), equivalent to one point seven eight six United States cents per kilowatt-hour (USD 0.01786/kWh).

(b) This Base Tariff represents the levelized cost-of-energy bid submitted by the Seller and accepted by the Buyer in the competitive tender process and reflects all costs of developing, financing, constructing, owning, operating, maintaining, and decommissioning the Facility over the Term.

4.2 TARIFF ESCALATION

(a) Commencing from Contract Year 6 and for each Contract Year thereafter

during the Term, the Base Tariff shall be escalated annually at a fixed rate of two percent (2%) per annum, compounded annually (the "Escalation Rate").

(b) The escalated tariff for any Contract Year n (where $n > 5$) shall be calculated as follows:

$$\text{Tariff}(n) = \text{Base Tariff} \times (1 + 0.02)^{(n-5)}$$

(c) The year-by-year tariff schedule is set forth in Schedule 4 attached hereto.

4.3 INVOICING

(a) Within ten (10) Business Days after the end of each Billing Period, the Seller shall submit to the Buyer a monthly invoice (each, an "Invoice") specifying:

- (i) the Billing Period to which the Invoice relates;
- (ii) the total Net Electrical Output delivered to the Delivery Point during the Billing Period, as recorded by the Revenue Meters;
- (iii) the applicable tariff rate for the relevant Contract Year;
- (iv) the total amount payable by the Buyer for such Billing Period;
- (v) any adjustments for Deemed Generation, Curtailment Energy, or metering corrections;
- (vi) any amounts previously disputed and subsequently resolved;
- (vii) any Liquidated Damages payable or creditable; and
- (viii) the net amount payable.

(b) Each Invoice shall be accompanied by:

- (i) Revenue Meter data in electronic format;
- (ii) meteorological data (irradiance, ambient temperature, wind speed) from the Facility's weather stations;
- (iii) availability reports;
- (iv) Curtailment reports, if applicable; and
- (v) such other supporting documentation as reasonably requested by the Buyer.

4.4 PAYMENT

(a) The Buyer shall pay each Invoice within thirty (30) days after receipt of a complete and properly rendered Invoice (the "Payment Due Date"). Payments shall be made by wire transfer of immediately available funds in United States Dollars to the Seller's designated bank account as notified

by the Seller in writing.

(b) If the Buyer disputes any amount in an Invoice in good faith, the Buyer shall pay the undisputed portion of the Invoice on or before the Payment Due Date and shall notify the Seller in writing of the disputed amount and the basis for the dispute within fifteen (15) Business Days of receipt of the Invoice.

(c) Any disputed amounts that are subsequently resolved in favor of the Seller shall bear interest at the Default Interest Rate from the original Payment Due Date until the date of actual payment.

4.5 LATE PAYMENT INTEREST

If the Buyer fails to pay any undisputed amount on or before the Payment Due Date, the unpaid amount shall bear interest from the Payment Due Date until the date of actual payment at the Default Interest Rate (SOFR plus two percent (2%) per annum), calculated on a daily compounding basis. Late payment interest shall be payable in addition to, and not in substitution for, any other right or remedy of the Seller under this Agreement or at law.

4.6 TAXES

(a) The Base Tariff is exclusive of any value added tax ("VAT") or similar indirect tax that may be imposed by any Governmental Authority on the sale and purchase of electrical energy. Any such VAT or similar tax shall be added to the Invoice and paid by the Buyer.

(b) Each Party shall be responsible for its own income taxes, corporate taxes, and similar direct taxes arising from or in connection with this Agreement.

(c) Any withholding taxes required to be deducted from payments under this Agreement shall be borne by the paying Party unless otherwise required by Applicable Law, in which case the paying Party shall gross up the payment such that the receiving Party receives the full amount that would have been received absent such withholding.

ARTICLE 5: METERING AND SETTLEMENT

5.1 REVENUE METERS

(a) The Seller shall install, own, and maintain a primary set of revenue-grade energy meters (the "Revenue Meters") at the Delivery Point for the purpose of measuring the Net Electrical Output delivered by the Facility to the Buyer's network.

(b) The Revenue Meters shall comply with IEC 62053-22 (Class 0.2S accuracy) or equivalent standard, and shall measure active energy (kWh), reactive energy (kVARh), power factor, voltage, and current at fifteen (15) minute intervals.

(c) The Buyer shall have the right, at its own cost, to install a set of check meters (the "Check Meters") at or near the Delivery Point. The Check Meters shall be used for verification purposes only and shall not be used for billing unless the Revenue Meters are found to be inaccurate.

5.2 METER READING AND DATA

(a) The Revenue Meters shall be equipped with automated data logging and remote communication capabilities, allowing both Parties to access real-time and historical metering data.

(b) The Seller shall provide the Buyer with electronic access to all Revenue Meter data on a continuous, real-time basis through a secure data link.

(c) Monthly meter readings shall be taken on the last day of each Billing Period (or the next Business Day if the last day falls on a non-Business Day) and shall be used as the basis for invoicing.

5.3 METER TESTING AND CALIBRATION

(a) The Revenue Meters shall be tested and calibrated at least once every twelve (12) months, or more frequently if requested by either Party, by an independent, accredited testing laboratory at the Seller's cost.

(b) If any test reveals that a Revenue Meter has an error exceeding plus or minus 0.5%, the Seller shall promptly recalibrate or replace the meter at its own cost, and the Parties shall agree on an adjustment to the metered data for the period from the last satisfactory test to the date of correction.

(c) If the Revenue Meters fail or cease to register, the Parties shall use the Check Meter data, and in the absence of Check Meter data, shall estimate the Net Electrical Output based on the Facility's generation profile during comparable periods, meteorological data, and other relevant factors.

5.4 METER DISPUTES

Any dispute regarding metering data, meter accuracy, or adjustments to metered data shall be resolved in accordance with the dispute resolution procedures set forth in Article 16.

ARTICLE 6: PERFORMANCE GUARANTEES

6.1 AVAILABILITY GUARANTEE

(a) The Seller guarantees that the Facility shall achieve an Availability of not less than ninety-eight percent (98%) in each Contract Year (the "Guaranteed Availability").

(b) If the Facility's Availability in any Contract Year falls below the Guaranteed Availability, the Seller shall pay to the Buyer Liquidated Damages in an amount equal to: (i) the product of (A) the shortfall in Availability (expressed as a percentage) multiplied by (B) the Annual Contract Quantity for such Contract Year multiplied by (C) the applicable Base Tariff for such Contract Year.

(c) For the avoidance of doubt, Excused Hours shall be excluded from the calculation of Availability.

6.2 PERFORMANCE RATIO GUARANTEE

(a) The Seller guarantees that the Performance Ratio of the Facility, as measured and calculated in accordance with IEC 61724, shall be not less than eighty percent (80%) over each Contract Year (the "Performance Ratio Guarantee"), after adjustment for Degradation.

(b) If the Facility's Performance Ratio in any Contract Year falls below the Performance Ratio Guarantee, the Seller shall pay to the Buyer Liquidated Damages equal to: (i) fifty United States Dollars per megawatt-hour

(USD 50/MWh) multiplied by the shortfall in energy output (in MWh) attributable to the Performance Ratio deficiency, where such shortfall shall be calculated as the difference between the actual energy output and the energy output that would have been achieved had the Performance Ratio been equal to the Performance Ratio Guarantee, given the actual Solar Resource conditions during such Contract Year.

6.3 CAP ON LIQUIDATED DAMAGES

The aggregate Liquidated Damages payable by the Seller under Sections 6.1 and 6.2 in any Contract Year shall not exceed fifteen percent (15%) of the Seller's total tariff revenue for such Contract Year (the "LD Cap"). The Parties agree and acknowledge that the Liquidated Damages amounts specified herein represent a reasonable pre-estimate of the Buyer's likely loss and are not penalties.

6.4 MEASUREMENT PERIOD

Performance shall be assessed annually, based on each Contract Year. The Seller shall provide the Buyer with quarterly performance reports indicating the Facility's Availability, Performance Ratio, energy output, and comparison with expectations.

6.5 SCHEDULED MAINTENANCE

(a) Not less than sixty (60) days prior to the start of each Contract Year, the Seller shall submit to the Buyer a proposed annual maintenance schedule identifying all planned maintenance activities and their expected duration.

(b) The Buyer shall review the proposed schedule and may request reasonable modifications to minimize the impact on energy delivery, and the Seller shall use commercially reasonable efforts to accommodate such requests.

(c) Scheduled Maintenance shall be planned during periods of lower solar irradiance (where commercially feasible) and shall not exceed a cumulative total of one hundred and seventy-five (175) hours per Contract Year without the Buyer's prior written consent.

ARTICLE 7: CURTAILMENT

7.1 TYPES OF CURTAILMENT

(a) Grid Curtailment: Any Curtailment directed by the Grid Operator or the Buyer due to grid congestion, grid security concerns, system balancing requirements, or Emergency conditions ("Grid Curtailment"). Grid Curtailment shall be a Compensable Curtailment.

(b) Economic Curtailment: Any Curtailment directed by the Buyer for economic reasons, including without limitation merit-order dispatch decisions or to manage oversupply conditions ("Economic Curtailment"). Economic Curtailment shall be a Compensable Curtailment.

(c) Force Majeure Curtailment: Any Curtailment resulting from a Force Majeure Event ("Force Majeure Curtailment"). Force Majeure Curtailment shall not be a Compensable Curtailment, and neither Party shall be liable for any loss or damage arising therefrom, subject to Article 11.

7.2 DEEMED GENERATION CALCULATION

For purposes of calculating compensation for Compensable Curtailment, the Deemed Generation during the curtailed period shall be calculated as follows:

Deemed Generation (MWh) = Facility Capacity (MW) x PR x GHI_actual /
GHI_STC x Hours of Curtailment x (1 - Degradation Factor)

Where:

- PR = the average Performance Ratio of the Facility during the most recent twelve (12) month period;
- GHI_actual = the actual Global Horizontal Irradiance measured at the Facility's weather stations during the curtailed period;
- GHI_STC = 1,000 W/m² (Standard Test Conditions);
- Degradation Factor = the cumulative degradation factor applicable to the relevant Contract Year as specified in Schedule 1.

7.3 COMPENSATION FOR GRID CURTAILMENT

For Grid Curtailment, the Buyer shall pay the Seller an amount equal to ninety percent (90%) of the product of the Deemed Generation and the applicable Base Tariff for the relevant Contract Year.

7.4 COMPENSATION FOR ECONOMIC CURTAILMENT

For Economic Curtailment, the Buyer shall pay the Seller an amount equal to one hundred percent (100%) of the product of the Deemed Generation and the applicable Base Tariff for the relevant Contract Year.

7.5 CURTAILMENT LIMITS

(a) The aggregate Compensable Curtailment in any Contract Year shall not exceed five hundred (500) hours. If the aggregate Compensable Curtailment exceeds five hundred (500) hours, the Seller shall have the right to terminate this Agreement upon one hundred eighty (180) days' written notice, subject to payment of the Termination Payment by the Buyer.

(b) The Seller shall comply with all Dispatch Instructions issued by the Grid Operator or the Buyer promptly and in accordance with the Grid Code, regardless of whether such Dispatch Instructions constitute Compensable Curtailment or Force Majeure Curtailment.

ARTICLE 8: TECHNICAL SPECIFICATIONS

8.1 GENERAL

The Facility shall be designed, engineered, constructed, and commissioned in accordance with the Technical Specifications set forth in Schedule 1 and all Applicable Laws, the Grid Code, and Good Utility Practice.

8.2 SOLAR MODULES

The Facility shall utilize monocrystalline bifacial solar photovoltaic modules with the following minimum specifications:

- (a) Module rated power: not less than 625 Wp per module;
- (b) Module efficiency: not less than 21.5% under Standard Test Conditions;
- (c) Bifaciality factor: not less than 70%;
- (d) Temperature coefficient of power: not worse than -0.34%/degC;
- (e) Module warranty: 12 years product warranty, 30 years linear power output warranty (minimum 87.4% at year 25);
- (f) Certification: IEC 61215, IEC 61730, UL 61730.

8.3 INVERTERS

The Facility shall utilize string inverters with the following minimum specifications:

- (a) Rated AC output power: 3.2 MW per inverter;
- (b) Maximum efficiency: not less than 99.0%;
- (c) Euro-weighted efficiency: not less than 98.5%;
- (d) Power factor control range: 0.9 leading to 0.9 lagging;
- (e) Grid support functions: frequency response, voltage regulation, reactive power control, fault ride-through capability;
- (f) Communication: MODBUS TCP/IP, IEC 61850 compatible.

8.4 TRACKING SYSTEM

The Facility shall utilize single-axis horizontal tracking systems with the following minimum specifications:

- (a) Tracking range: +/- 60 degrees from horizontal;
- (b) Tracking algorithm: astronomical with backtracking and terrain-following;
- (c) Wind stop position: 0 degrees (horizontal) at wind speeds exceeding 22 m/s;
- (d) Motor type: brushless DC or AC servo;
- (e) Design wind speed: 150 km/h (3-second gust).

8.5 ELECTRICAL COLLECTION AND TRANSMISSION

(a) The Facility shall have a 33 kV medium-voltage collection system connecting the inverter stations to the main step-up substation.

(b) The step-up substation shall include two (2) 33/132 kV power transformers, each rated at not less than 140 MVA (ONAN/ONAF), with appropriate switchgear, protection, and control systems.

(c) The 132 kV connection from the step-up substation to the Delivery Point at the Al Dhafra 132 kV Substation shall be via underground cable or overhead line as determined by the Grid Operator and approved by the Buyer.

ARTICLE 9: INTERCONNECTION

9.1 DELIVERY POINT

The Delivery Point shall be at the 132 kV bus of the Al Dhafra 132 kV Substation owned and operated by TRANSCO, as more particularly described in the Grid Connection Agreement.

9.2 SELLER'S INTERCONNECTION OBLIGATIONS

The Seller shall, at its own cost:

- (a) Design, engineer, procure, construct, and commission all Electrical Interconnection Facilities from the Facility's step-up substation to the Delivery Point;
- (b) Obtain all necessary approvals and permits for the interconnection works;
- (c) Comply with all requirements of the Grid Code relating to the connection of generating facilities to the transmission network;
- (d) Install and commission all protection, control, and metering equipment required at the Delivery Point;
- (e) Provide reactive power compensation sufficient to maintain a power factor at the Delivery Point within the range of 0.95 leading to 0.95 lagging, as directed by the Grid Operator.

9.3 GRID CODE COMPLIANCE

- (a) The Facility shall comply with all requirements of the Grid Code, including without limitation:
 - (i) frequency response: the Facility shall be capable of reducing output at a rate of at least 10% of Contracted Capacity per minute in response to over-frequency events;
 - (ii) fault ride-through: the Facility shall remain connected and continue to operate through voltage dips to 0% of nominal voltage for up to 150 milliseconds and voltage recovery as specified in the Grid Code;
 - (iii) power quality: the Facility shall comply with IEC 61000 standards for harmonic distortion, voltage flicker, and other power quality parameters; and
 - (iv) communication: the Facility shall maintain real-time SCADA communication with the Grid Operator's control center.

ARTICLE 10: INSURANCE

10.1 REQUIRED INSURANCE

The Seller shall obtain and maintain, at its own cost, the following insurance coverage during the periods specified:

(a) Construction All Risks Insurance: From the commencement of construction until the Commercial Operation Date, covering physical loss or damage to the Facility during construction, including testing and commissioning, for an insured amount not less than the full replacement value of the Facility.

(b) Operational All Risks Insurance: From the Commercial Operation Date throughout the Operating Period, covering physical loss or damage to the Facility during operation, for an insured amount not less than the full replacement value of the Facility.

(c) Third Party Liability Insurance: For the entire Term, covering the Seller's legal liability for bodily injury, death, or property damage to third parties arising out of or in connection with the construction, operation, or maintenance of the Facility, with a minimum limit of one hundred million United States Dollars (USD 100,000,000) per occurrence and in the aggregate.

(d) Business Interruption Insurance: From the Commercial Operation Date throughout the Operating Period, covering loss of revenue resulting from physical loss or damage to the Facility, for an indemnity period of not less than eighteen (18) months and a sum insured not less than eighteen (18) months of projected tariff revenue.

(e) Employer's Liability and Workers' Compensation Insurance: As required by Applicable Law.

(f) Professional Indemnity Insurance: For the design and engineering period, with a minimum limit of USD 25,000,000.

10.2 INSURANCE REQUIREMENTS

(a) All insurance policies shall be underwritten by insurers with a minimum credit rating of "A-" from Standard & Poor's or "A3" from Moody's.

(b) The Buyer shall be named as an additional insured on the Third Party Liability Insurance and as a loss payee on the Operational All Risks and Business Interruption Insurance.

(c) The Seller shall provide the Buyer with certificates of insurance and

copies of all insurance policies within thirty (30) days of placement or renewal.

(d) The Seller shall not cancel, materially modify, or allow to lapse any required insurance policy without at least sixty (60) days' prior written notice to the Buyer.

ARTICLE 11: FORCE MAJEURE

11.1 DEFINITION

"Force Majeure" or "Force Majeure Event" means any event or circumstance, or combination of events or circumstances, that: (a) is beyond the reasonable control of the affected Party; (b) could not have been prevented or avoided by the affected Party through the exercise of reasonable diligence and Good Utility Practice; and (c) directly and materially prevents or delays the affected Party from performing one or more of its material obligations under this Agreement.

11.2 FORCE MAJEURE EVENTS

Without limiting the generality of Section 11.1, Force Majeure Events shall include the following, subject to the conditions set forth in Section 11.1:

(a) Natural Force Majeure Events:

(i) earthquake, tsunami, volcanic eruption, landslide, or subsidence;

(ii) flood, storm, cyclone, hurricane, or typhoon of an intensity

exceeding a 1-in-50-year recurrence interval;

(iii) sandstorm or dust storm persisting for more than seventy-two (72)

consecutive hours at the Site, as measured by the Facility's weather monitoring equipment;

(iv) lightning strike causing direct physical damage to the Facility;

(v) epidemic, pandemic, or plague declared by the World Health Organization or the UAE Ministry of Health;

(vi) wildfire or brush fire threatening or damaging the Facility or restricting access thereto.

(b) Political Force Majeure Events:

(i) war (declared or undeclared), invasion, armed conflict, blockade, embargo, or military action;

(ii) revolution, insurrection, civil unrest, terrorism, or sabotage;

(iii) act of any Governmental Authority, including nationalization, expropriation, confiscation, or sequestration of the Facility or any material assets of the Seller;

(iv) imposition of economic sanctions or trade restrictions by the United Nations, the European Union, the United States, or the UAE;

(v) nuclear, biological, or chemical contamination (unless caused by the affected Party).

(c) Grid Force Majeure Events:

(i) failure or collapse of the electrical grid not caused by the Seller;

(ii) disconnection of the Facility from the grid directed by the Grid Operator due to grid security concerns not attributable to the Seller.

11.3 EXCLUSIONS FROM FORCE MAJEURE

The following shall not constitute Force Majeure Events:

(a) any event or circumstance that could have been prevented or mitigated by the affected Party through the exercise of Good Utility Practice;

(b) normal weather conditions, including seasonal variations in Solar Resource;

(c) equipment failures or breakdowns attributable to defective design, manufacturing defects, or inadequate maintenance;

(d) economic hardship, including changes in market prices, currency fluctuations, loss of profitability, or inability to obtain financing;

(e) the failure of any subcontractor, supplier, or vendor of the affected Party to perform, unless such failure is itself caused by a Force Majeure Event;

(f) labor disputes, strikes, or lockouts limited to the Seller's workforce or the workforce of its contractors, unless such labor action is part of a general industry-wide or nationwide labor action.

11.4 FORCE MAJEURE NOTICE AND OBLIGATIONS

(a) The affected Party shall give written notice to the other Party within five (5) Business Days of becoming aware of a Force Majeure Event, specifying the nature, expected duration, and likely effect of the Force Majeure Event on the affected Party's ability to perform its obligations.

(b) The affected Party shall use all reasonable efforts to mitigate the effects of the Force Majeure Event and to resume performance of its obligations as soon as reasonably practicable.

(c) The affected Party shall provide regular updates (not less than weekly) to the other Party on the status of the Force Majeure Event and the measures being taken to mitigate its effects.

11.5 CONSEQUENCES OF FORCE MAJEURE

(a) Neither Party shall be liable for any failure or delay in performing any of its obligations under this Agreement to the extent that such failure or delay is caused by a Force Majeure Event.

(b) If a Force Majeure Event prevents or delays the achievement of the Commercial Operation Date, the Long-Stop Date shall be extended day-for-day for the duration of the Force Majeure Event.

(c) If a Force Majeure Event continues for a period exceeding three hundred and sixty-five (365) consecutive days, either Party may terminate this Agreement upon sixty (60) days' written notice, subject to payment of the Termination Payment as specified in Article 13.5.

ARTICLE 12: CHANGE OF LAW

12.1 CHANGE OF LAW RISK ALLOCATION

(a) The Buyer shall bear the risk of any Change of Law that results in an increase in the Seller's costs of developing, financing, constructing, owning, operating, or maintaining the Facility, or that reduces the Seller's revenues under this Agreement, where such increase in costs or reduction in revenues exceeds, individually or in the aggregate, five percent (5%) of the Seller's annual tariff revenue in any Contract Year.

(b) The Seller shall bear the risk of any Change of Law that results in a decrease in the Seller's costs or an increase in the Seller's revenues.

12.2 ADJUSTMENT MECHANISM

(a) If a Change of Law occurs that triggers the risk allocation mechanism in Section 12.1(a), the Seller shall promptly notify the Buyer and the Parties shall negotiate in good faith to agree on an adjustment to the Base Tariff or other commercial terms of this Agreement to restore the Seller to

the economic position it would have been in but for the Change of Law.

(b) If the Parties are unable to agree on an adjustment within ninety (90) days of the Seller's notice, the matter shall be referred to an independent expert for determination, and the expert's determination shall be final and binding on the Parties.

ARTICLE 13: TERMINATION

13.1 SELLER DEFAULTS

Each of the following shall constitute a "Seller Default":

(a) the Seller fails to achieve Commercial Operation by the Long-Stop Date (as may be extended);

(b) the Seller abandons the Facility for a period of sixty (60) consecutive days;

(c) the Seller fails to deliver Net Electrical Output to the Delivery Point for a continuous period of one hundred and eighty (180) days (other than due to Force Majeure, Compensable Curtailment, or approved Scheduled Maintenance);

(d) the Seller materially breaches any material provision of this Agreement and fails to cure such breach within the Cure Period;

(e) the Seller becomes insolvent, enters into bankruptcy, administration, or liquidation proceedings, or makes an assignment for the benefit of creditors;

(f) any representation or warranty made by the Seller in this Agreement proves to be materially false or misleading when made;

(g) the Seller fails to maintain the insurance required under Article 10 and does not remedy such failure within thirty (30) days of notice.

13.2 BUYER DEFAULTS

Each of the following shall constitute a "Buyer Default":

(a) the Buyer fails to pay any undisputed amount due under this Agreement within sixty (60) days after the Payment Due Date;

(b) the Buyer materially breaches any material provision of this Agreement and fails to cure such breach within the Cure Period;

(c) the Buyer becomes insolvent, enters into bankruptcy, administration, or liquidation proceedings;

- (d) the Buyer's electricity distribution license is revoked or terminated;
- (e) any representation or warranty made by the Buyer proves to be materially false or misleading when made.

13.3 TERMINATION RIGHTS

(a) Upon the occurrence of a Seller Default, the Buyer may terminate this Agreement by giving not less than sixty (60) days' written notice to the Seller, provided that the Seller has been given the opportunity to cure such default within the Cure Period specified in Section 13.4.

(b) Upon the occurrence of a Buyer Default, the Seller may terminate this Agreement by giving not less than sixty (60) days' written notice to the Buyer, provided that the Buyer has been given the opportunity to cure such default within the Cure Period specified in Section 13.4.

13.4 CURE PERIOD

The Cure Period for any default (other than insolvency-related defaults, for which no Cure Period applies) shall be sixty (60) days from the date of receipt of written notice specifying the default, provided that if the defaulting Party has commenced and is diligently pursuing a cure within such sixty (60) day period, the Cure Period shall be extended to a maximum of one hundred and twenty (120) days.

13.5 TERMINATION PAYMENTS

(a) Upon termination for Seller Default, the Seller shall pay to the Buyer a Termination Payment equal to the aggregate of:

- (i) the cost to the Buyer of procuring replacement capacity and energy from alternative sources for the unexpired portion of the Term;
- (ii) any outstanding Liquidated Damages; and
- (iii) the Buyer's reasonable legal and administrative costs.

(b) Upon termination for Buyer Default, the Buyer shall pay to the Seller a Termination Payment equal to the aggregate of:

- (i) the net present value (discounted at SOFR plus 1%) of the Seller's expected tariff revenue for the unexpired portion of the Term, less the Seller's avoided costs;
- (ii) the outstanding balance of the Seller's project financing; and
- (iii) the Seller's reasonable legal and administrative costs.

13.6 TRANSFER OF ASSETS

Upon termination of this Agreement for any reason, the Buyer shall have the option (but not the obligation) to acquire the Facility at a price equal to the fair market value of the Facility as determined by an independent valuer agreed upon by the Parties.

ARTICLE 14: CREDIT SUPPORT

14.1 LETTER OF CREDIT

(a) The Seller shall deliver to the Buyer, on or before the Closing Date, an irrevocable standby letter of credit (the "Letter of Credit" or "LC") in the amount of twenty-five million United States Dollars (USD 25,000,000), issued by a bank with a minimum long-term credit rating of "A" from Standard & Poor's or "A2" from Moody's (the "Issuing Bank").

(b) The Letter of Credit shall be in the form set forth in Schedule 5 and shall be maintained by the Seller throughout the Term.

(c) The Buyer shall have the right to draw upon the Letter of Credit in the event of: (i) a Seller Default that is not cured within the applicable Cure Period; (ii) the Seller's failure to pay any undisputed Liquidated Damages within thirty (30) days of demand; or (iii) the Seller's failure to renew or replace the Letter of Credit at least thirty (30) days prior to its expiry.

14.2 RENEWAL OF LETTER OF CREDIT

The Seller shall ensure that the Letter of Credit is renewed or replaced not less than thirty (30) days prior to its expiry date. If the Seller fails to renew or replace the Letter of Credit, the Buyer shall have the right to draw the full amount of the Letter of Credit and hold such amount as cash security.

14.3 PARENT COMPANY GUARANTEE

(a) The Seller shall procure and deliver to the Buyer, on or before the

Closing Date, an unconditional and irrevocable guarantee from TAQA (Abu Dhabi National Energy Company PJSC) (the "Parent Company Guarantee") guaranteeing the full and timely performance by the Seller of all of its obligations under this Agreement.

(b) The Parent Company Guarantee shall be in the form set forth in Schedule 5 and shall remain in full force and effect throughout the Term and for a period of twelve (12) months thereafter.

ARTICLE 15: ASSIGNMENT AND TRANSFER

15.1 RESTRICTION ON ASSIGNMENT

Neither Party may assign, transfer, novate, or otherwise dispose of its rights or obligations under this Agreement, in whole or in part, without the prior written consent of the other Party, which consent shall not be unreasonably withheld, conditioned, or delayed.

15.2 PERMITTED TRANSFERS

Notwithstanding Section 15.1, the following transfers shall be deemed Permitted Transfers and shall not require the consent of the other Party (provided that written notice is given within thirty (30) days):

(a) a transfer by the Seller to an Affiliate of the Seller, provided that the transferee assumes all of the Seller's obligations under this Agreement and the Seller remains jointly and severally liable for such obligations (or the Parent Company Guarantee remains in full force and effect with respect to such transferee);

(b) a collateral assignment by the Seller of its rights (but not obligations) under this Agreement to the Lenders as security for the Seller's financing arrangements, subject to the terms of any direct agreement or consent agreement among the Parties and the Lenders;

(c) a transfer by the Buyer to any successor entity resulting from a reorganization, merger, or consolidation of the Buyer mandated by or approved by the Department of Energy of Abu Dhabi.

15.3 LENDER CONSENT RIGHTS

The Buyer agrees to enter into a direct agreement or consent agreement with the Lenders, in form and substance reasonably acceptable to the Buyer and the Lenders, providing for customary lender protections, including without limitation: (a) notice and cure rights; (b) step-in rights upon a Seller Default; and (c) recognition of a Lender-appointed substitute seller.

ARTICLE 16: DISPUTE RESOLUTION

16.1 AMICABLE RESOLUTION

The Parties shall first attempt to resolve any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach, termination, or invalidity thereof, through good faith consultation and negotiation between senior representatives of the Parties. Each Party shall appoint a senior representative within ten (10) Business Days of receipt of a written notice of dispute, and the senior representatives shall meet (in person or by videoconference) within twenty (20) Business Days thereafter to attempt to resolve the dispute.

16.2 ARBITRATION

If the dispute is not resolved through amicable resolution within sixty (60) days of the initial written notice of dispute (or such longer period as the Parties may agree in writing), the dispute shall be finally and exclusively settled by arbitration administered by the Abu Dhabi Commercial Conciliation and Arbitration Centre ("ADCCAC") in accordance with the ADCCAC Arbitration Rules in effect at the time of the arbitration.

16.3 ARBITRATION PROCEDURES

- (a) The seat of arbitration shall be Abu Dhabi, United Arab Emirates.
- (b) The language of the arbitration shall be English.
- (c) The arbitral tribunal shall consist of three (3) arbitrators. Each Party shall appoint one arbitrator, and the two Party-appointed arbitrators shall appoint the presiding arbitrator. If any arbitrator is not appointed within thirty (30) days, the appointing authority shall be the Chairman of ADCCAC.
- (d) The arbitral award shall be final and binding on the Parties and shall

not be subject to appeal, except as required by mandatory provisions of Applicable Law.

(e) The Parties agree that the arbitral tribunal shall have the power to award interim and conservatory measures, including injunctive relief.

(f) Each Party shall bear its own costs of the arbitration, and the costs of the arbitral tribunal and ADCCAC administrative fees shall be borne equally by the Parties, unless the arbitral tribunal determines otherwise.

16.4 GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the Emirate of Abu Dhabi and, to the extent applicable, the federal laws of the United Arab Emirates.

16.5 CONTINUED PERFORMANCE

Pending the final resolution of any dispute, the Parties shall continue to perform their respective obligations under this Agreement to the extent not directly affected by the dispute.

ARTICLE 17: INDEMNIFICATION

17.1 MUTUAL INDEMNITY

Each Party (the "Indemnifying Party") shall indemnify, defend, and hold harmless the other Party and its Affiliates, directors, officers, employees, agents, and representatives (collectively, the "Indemnified Parties") from and against any and all claims, demands, actions, proceedings, losses, liabilities, damages, costs, and expenses (including reasonable attorneys' fees and costs) arising out of or in connection with:

(a) any breach by the Indemnifying Party of its representations, warranties, or obligations under this Agreement;

(b) the negligence or willful misconduct of the Indemnifying Party or its employees, agents, or contractors;

(c) any violation of Applicable Law by the Indemnifying Party; and

(d) any death, personal injury, or property damage caused by the Indemnifying Party's operations or activities.

17.2 EXCLUSION OF CONSEQUENTIAL DAMAGES

NOTWITHSTANDING ANY OTHER PROVISION OF THIS AGREEMENT, NEITHER PARTY SHALL BE LIABLE TO THE OTHER PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING WITHOUT LIMITATION LOST PROFITS, LOSS OF BUSINESS OPPORTUNITY, LOSS OF REVENUE, LOSS OF USE, OR DIMINUTION IN VALUE, ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, WHETHER BASED ON CONTRACT, TORT, STRICT LIABILITY, OR ANY OTHER THEORY, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES; PROVIDED, HOWEVER, THAT THIS EXCLUSION SHALL NOT APPLY TO: (I) THE INDEMNIFICATION OBLIGATIONS SET FORTH IN SECTION 17.1; (II) A PARTY'S FRAUD, GROSS NEGLIGENCE, OR WILLFUL MISCONDUCT; OR (III) TERMINATION PAYMENTS PAYABLE UNDER ARTICLE 13.

17.3 AGGREGATE CAP ON LIABILITY

The aggregate liability of each Party under this Agreement (excluding liability for fraud, willful misconduct, indemnification obligations under Section 17.1, and Termination Payments) shall not exceed one hundred percent (100%) of the Seller's total annual tariff revenue under this Agreement, calculated as the product of the Annual Contract Quantity and the applicable Base Tariff for the relevant Contract Year.

ARTICLE 18: CONFIDENTIALITY

18.1 CONFIDENTIAL INFORMATION

"Confidential Information" means all information (whether written, oral, electronic, or in any other form) disclosed by one Party (the "Disclosing Party") to the other Party (the "Receiving Party") in connection with this Agreement, including without limitation the terms and conditions of this Agreement, financial information, business plans, technical data, trade secrets, know-how, and any other information designated as confidential.

18.2 OBLIGATIONS

The Receiving Party shall: (a) keep all Confidential Information strictly confidential; (b) not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party; and (c) use Confidential Information solely for the purposes of performing its obligations and exercising its rights under this Agreement.

18.3 EXCEPTIONS

The obligations in Section 18.2 shall not apply to Confidential Information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was in the Receiving Party's possession prior to disclosure by the Disclosing Party; (c) is independently developed by the Receiving Party without reference to the Confidential Information; (d) is received from a third party without restriction and without breach of any obligation of confidentiality; or (e) is required to be disclosed by Applicable Law, court order, or regulatory requirement, provided that the Receiving Party gives prompt written notice to the Disclosing Party and cooperates in seeking protective measures.

18.4 PERMITTED DISCLOSURES

The Receiving Party may disclose Confidential Information to:

(a) its Affiliates, directors, officers, employees, agents, and advisors who have a need to know such information for purposes related to this Agreement and who are bound by confidentiality obligations no less restrictive than those set forth herein;

(b) the Lenders and their advisors, subject to customary confidentiality undertakings;

(c) any Governmental Authority, regulatory body, or tax authority having jurisdiction over the Receiving Party, to the extent required by Applicable Law or regulation; and

(d) rating agencies, insurers, and reinsurers, subject to customary confidentiality undertakings.

18.5 SURVIVAL

The confidentiality obligations set forth in this Article 18 shall survive the expiration or termination of this Agreement for a period of five (5) years.

ARTICLE 19: REPRESENTATIONS AND WARRANTIES

19.1 SELLER'S REPRESENTATIONS AND WARRANTIES

The Seller represents and warrants to the Buyer, as of the Execution Date and the Closing Date, that:

(a) the Seller is a limited liability company duly organized, validly existing, and in good standing under the laws of the Emirate of Abu Dhabi;

(b) the Seller has full power and authority to enter into and perform its obligations under this Agreement;

(c) this Agreement has been duly authorized, executed, and delivered by the Seller and constitutes a legal, valid, and binding obligation of the Seller, enforceable against the Seller in accordance with its terms;

(d) the execution, delivery, and performance of this Agreement by the Seller do not conflict with or result in a breach of any Applicable Law or any

agreement to which the Seller is a party;

(e) there is no pending or threatened litigation, arbitration, or proceeding that could reasonably be expected to have a Material Adverse Effect on the Seller or its ability to perform its obligations under this Agreement.

19.2 BUYER'S REPRESENTATIONS AND WARRANTIES

The Buyer represents and warrants to the Seller, as of the Execution Date and the Closing Date, that:

(a) the Buyer is a public joint stock company duly organized, validly existing, and in good standing under the laws of the Emirate of Abu Dhabi;

(b) the Buyer has full power and authority to enter into and perform its obligations under this Agreement;

(c) this Agreement has been duly authorized, executed, and delivered by the Buyer and constitutes a legal, valid, and binding obligation of the Buyer, enforceable against the Buyer in accordance with its terms;

(d) the Buyer holds a valid electricity distribution license issued by the Department of Energy of Abu Dhabi;

(e) the Buyer's entering into this Agreement has been approved by all necessary corporate and regulatory bodies.

ARTICLE 20: MISCELLANEOUS PROVISIONS

20.1 NOTICES

All notices required or permitted under this Agreement shall be in writing and shall be delivered by hand, registered mail, reputable international courier, or email (with confirmation of receipt) to the addresses specified in the Notices section of this Agreement. Any notice shall be deemed received on the Business Day following the date of delivery.

20.2 ENTIRE AGREEMENT

This Agreement (including all Schedules and Annexes hereto) constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, and

agreements, whether written or oral.

20.3 AMENDMENTS

No amendment or modification of this Agreement shall be effective unless made in writing and signed by duly authorized representatives of both Parties.

20.4 WAIVER

No failure or delay by either Party in exercising any right, power, or remedy under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or remedy preclude any other or further exercise of such right or any other right, power, or remedy.

20.5 SEVERABILITY

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect, and the Parties shall negotiate in good faith to replace the invalid provision with a valid provision that achieves, to the extent possible, the intended economic and legal effect of the invalid provision.

20.6 COUNTERPARTS

This Agreement may be executed in any number of counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

SCHEDULE 1: TECHNICAL SPECIFICATIONS

S1.1 FACILITY OVERVIEW

Project Name: Al Dhafra 250 MW Solar PV Project

Technology: Crystalline silicon photovoltaic

Configuration: Fixed-tilt / Single-axis tracking (hybrid layout)

Nominal Capacity: 250 MW AC / 312.5 MW DC (DC:AC ratio of 1.25)

Number of Modules: Approximately 500,000 units
Module Type: Monocrystalline bifacial PERC+
Module Manufacturer: LONGi Green Energy Technology Co., Ltd. (or approved equal)
Module Model: LONGi Hi-MO 7 (or equivalent)
Module Rated Power: 625 Wp
Module Dimensions: 2,278 mm x 1,134 mm x 35 mm
Module Weight: 32.2 kg
Module Efficiency: 22.5% (STC)
Cell Type: n-type TOPCon monocrystalline silicon
Bifaciality Factor: 80% (+/- 5%)
Temperature Coefficient (Pmax): -0.29%/degC
Maximum System Voltage: 1,500 VDC
Connector Type: MC4 EVO2

S1.2 INVERTER SPECIFICATIONS

Inverter Type: Central / String hybrid (string inverters predominant)
Inverter Manufacturer: Huawei Technologies Co., Ltd. (or approved equal)
Inverter Model: SUN2000-330KTL-H1 (or equivalent)
Number of Inverters: Approximately 78 units (3.2 MW string inverter stations)
Inverter Rated Power: 3,200 kW AC per inverter station
Maximum DC Input Power: 4,000 kW
Maximum Efficiency: 99.03%
Euro-Weighted Efficiency: 98.7%
AC Output Voltage: 800 V, 3-phase
Power Factor Range: 0.8 leading to 0.8 lagging (adjustable)
Protection Class: IP66
Operating Temperature Range: -25 degC to +60 degC
Communication Protocols: MODBUS TCP/IP, IEC 61850, SunSpec

S1.3 TRACKING SYSTEM SPECIFICATIONS

Tracker Type: Single-axis horizontal tracker
Tracker Manufacturer: Nextracker Inc. (or approved equal)
Tracker Model: NX Horizon (or equivalent)
Tracking Range: +/- 60 degrees
Tracking Algorithm: TrueCapture (astronomical + terrain-following + diffuse light optimization)
Row Spacing: 5.5 m (center-to-center)
Modules per Tracker Row: 90 modules (2-in-portrait configuration)

Motor Type: Self-powered DC motor with integrated PV panel
Wind Stow Speed: 22 m/s (activated automatically)
Design Wind Speed: 150 km/h (3-second gust at 10 m height)
Snow Load Capacity: Not applicable (desert climate)
Corrosion Protection: Hot-dip galvanized steel, C4 environment rated

S1.4 ELECTRICAL COLLECTION SYSTEM

Medium Voltage Collection: 33 kV, 3-phase, underground cable network
Cable Type: XLPE insulated, copper conductor, armored
Collection Feeders: 12 feeders, each serving approximately 20.8 MW
Feeder Cable Size: 630 mm² (trunk), 400 mm² (branch)

S1.5 STEP-UP SUBSTATION

Substation Rating: 2 x 140 MVA, 33/132 kV
Transformer Type: ONAN/ONAF, copper wound, mineral oil filled
Cooling Type: Forced air cooling (ONAF mode)
On-Load Tap Changer: +/- 10% in 17 steps
132 kV Switchgear: GIS (Gas Insulated Switchgear), SF₆
33 kV Switchgear: Metal-clad, vacuum circuit breakers
Protection System: Distance protection, differential protection, overcurrent protection, earth fault protection, busbar protection
SCADA System: Fully integrated, IEC 61850 compliant
Reactive Power Compensation: Static VAR Compensator (SVC), +/- 50 MVAR

S1.6 DEGRADATION SCHEDULE

Year 1: 0.00% (no degradation during first year)
Year 2: 2.00% (initial light-induced degradation)
Year 3 through Year 25: 0.45% per year (linear annual degradation)

Cumulative degradation at end of Term (Year 25):

$$2.00\% + (23 \times 0.45\%) = 2.00\% + 10.35\% = 12.35\%$$

Guaranteed minimum power output at Year 25: 87.65% of nameplate

S1.7 WEATHER MONITORING

The Facility shall include not less than four (4) meteorological stations, each equipped with:

- Pyranometer (Class A, ISO 9060): measuring GHI
- Pyrliometer with solar tracker: measuring DNI
- Pyranometer (tilted): measuring plane-of-array irradiance
- Ambient temperature sensor (ventilated)
- Module back-surface temperature sensor
- Wind speed and direction sensor (anemometer and wind vane)
- Barometric pressure sensor
- Relative humidity sensor
- Rain gauge
- Soiling sensor (DustIQ or equivalent)

Data logging interval: 1 minute

Data transmission: Real-time via fiber optic to central SCADA

SCHEDULE 2: SITE DESCRIPTION

S2.1 LOCATION

Project Site: Al Dhafra Solar PV Project Site

Emirate: Abu Dhabi, United Arab Emirates

Geographical Coordinates (approximate center of site):

Latitude: 23.6345 degrees North

Longitude: 54.4012 degrees East

Elevation: 105 meters above mean sea level

S2.2 SITE AREA

Total Site Area: Approximately 500 hectares (5.0 km²)

Fenced Area: Approximately 490 hectares

Active Array Area: Approximately 420 hectares

S2.3 TERRAIN AND SOIL CONDITIONS

Terrain Type: Flat desert terrain with minimal topographic variation

Maximum Slope: Less than 2%

Soil Type: Sandy soil with compacted subsurface layers

Groundwater Level: Greater than 15 meters below ground level

Seismic Zone: Zone 0 (low seismic activity)

S2.4 CLIMATIC CONDITIONS

Annual Global Horizontal Irradiance (GHI): 2,140 kWh/m²/year (P50)

Annual Direct Normal Irradiance (DNI): 1,960 kWh/m²/year (P50)

Average Annual Temperature: 28.4 degC

Maximum Recorded Temperature: 51.8 degC

Minimum Recorded Temperature: 4.2 degC

Average Annual Relative Humidity: 55%

Average Annual Rainfall: 42 mm

Prevailing Wind Direction: Northwest (Shamal)

Maximum Wind Speed (50-year return period): 135 km/h

S2.5 ACCESS

Primary Access Road: Al Dhafra Highway (Route E65), approximately 3 km from site entrance

Site Access Road: 7 m wide compacted gravel road from Route E65 to site gate

Internal Roads: 5 m wide compacted gravel roads within the site perimeter

SCHEDULE 3: MILESTONE SCHEDULE

Milestone Target Date

Execution of PPA March 15, 2024

Effective Date April 1, 2024

Satisfaction of Conditions Precedent December 31, 2024

Financial Close June 30, 2025

Commencement of Construction July 15, 2025

Completion of Site Preparation/Grading September 30, 2025

Commencement of Piling Works October 15, 2025

Completion of Tracker Installation March 31, 2026

Completion of Module Installation June 30, 2026

Completion of Electrical Works August 31, 2026

Substation Energization September 15, 2026

Mechanical Completion September 30, 2026

Commencement of Commissioning Tests October 1, 2026

Grid Synchronization October 15, 2026

Completion of Performance Tests November 30, 2026

Commercial Operation Date (COD) December 31, 2026 (Long-Stop Date)

SCHEDULE 4: TARIFF SCHEDULE

The following table sets forth the Base Tariff applicable to each Contract Year during the Term:

Contract Period Tariff Tariff

Year (From COD) (USD/MWh) (USD/kWh)

1 Year	1	17.86	0.01786
2 Year	2	17.86	0.01786
3 Year	3	17.86	0.01786
4 Year	4	17.86	0.01786
5 Year	5	17.86	0.01786
6 Year	6	18.22	0.01822
7 Year	7	18.58	0.01858
8 Year	8	18.95	0.01895
9 Year	9	19.33	0.01933
10 Year	10	19.72	0.01972
11 Year	11	20.11	0.02011
12 Year	12	20.52	0.02052
13 Year	13	20.93	0.02093
14 Year	14	21.34	0.02134
15 Year	15	21.77	0.02177
16 Year	16	22.21	0.02221
17 Year	17	22.65	0.02265
18 Year	18	23.10	0.02310
19 Year	19	23.57	0.02357
20 Year	20	24.04	0.02404
21 Year	21	24.52	0.02452
22 Year	22	25.01	0.02501
23 Year	23	25.51	0.02551
24 Year	24	26.02	0.02602
25 Year	25	26.54	0.02654

Notes:

- (a) The Base Tariff for Contract Years 1-5 is fixed at USD 17.86/MWh.
- (b) From Contract Year 6 onward, the tariff escalates at 2.0% per annum, compounded annually.
- (c) All tariffs are in nominal United States Dollars and are not subject to further inflation adjustment.

(d) Tariff amounts are rounded to two decimal places (USD/MWh) and five decimal places (USD/kWh).

SCHEDULE 5: FORMS OF CREDIT SUPPORT

S5.1 FORM OF IRREVOCABLE STANDBY LETTER OF CREDIT

[ISSUING BANK LETTERHEAD]

IRREVOCABLE STANDBY LETTER OF CREDIT NO.

[_____]

Date of Issue: [_____]

Date of Expiry: [_____] (twelve (12) months from date of issue, subject to automatic annual renewal)

Applicant: Al Dhafra Solar Energy LLC

Beneficiary: Abu Dhabi Distribution Company (ADDC)

Amount: USD 25,000,000.00 (Twenty-Five Million United States Dollars)

We, [Issuing Bank Name], hereby issue this irrevocable standby letter of credit in favor of Abu Dhabi Distribution Company (ADDC) (the "Beneficiary") for the account of Al Dhafra Solar Energy LLC (the "Applicant") in the amount of USD 25,000,000.00 (Twenty-Five Million United States Dollars).

This Letter of Credit is issued in connection with the Power Purchase Agreement dated March 15, 2024 (the "PPA") between the Applicant and the Beneficiary.

We undertake to pay to the Beneficiary any amount up to the full amount of this Letter of Credit upon receipt by us at our above address of the Beneficiary's first written demand accompanied by the Beneficiary's signed statement certifying that:

"The Applicant has failed to perform its obligations under the PPA as more particularly described herein: [brief description of default]"

This Letter of Credit is subject to the International Standby Practices 1998 (ISP98), International Chamber of Commerce Publication No. 590.

This Letter of Credit shall automatically extend for successive periods of

twelve (12) months from the current expiry date unless we notify the Beneficiary in writing at least sixty (60) days prior to any expiry date that we elect not to extend this Letter of Credit.

[ISSUING BANK SIGNATURE]

S5.2 FORM OF PARENT COMPANY GUARANTEE

UNCONDITIONAL AND IRREVOCABLE GUARANTEE

Date: [_____]

Guarantor: Abu Dhabi National Energy Company PJSC (TAQA)

Guaranteed Party: Al Dhafra Solar Energy LLC (the "Seller")

Beneficiary: Abu Dhabi Distribution Company (ADDC) (the "Buyer")

TAQA (the "Guarantor") hereby unconditionally and irrevocably guarantees to the Buyer the full, complete, and timely performance by the Seller of all of its obligations under the Power Purchase Agreement dated March 15, 2024 between the Seller and the Buyer (the "PPA").

The Guarantor's obligations under this Guarantee are primary and not secondary, and the Buyer shall not be required to proceed against the Seller or exhaust any remedy against the Seller before making a demand under this Guarantee.

This Guarantee shall remain in full force and effect for the duration of the PPA Term and for a period of twelve (12) months thereafter.

This Guarantee shall be governed by and construed in accordance with the laws of the Emirate of Abu Dhabi and, to the extent applicable, the federal laws of the United Arab Emirates.

[TAQA AUTHORIZED SIGNATORIES]

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the date first written above.

FOR AND ON BEHALF OF FOR AND ON BEHALF OF

**AL DHAFRA SOLAR ENERGY LLC ABU DHABI
DISTRIBUTION COMPANY (ADDC)**

Name: [] Name: []

Title: [] Title: []

Date: March 15, 2024 Date: March 15, 2024

Witness: Witness:

Name: [] Name: []

Title: [] Title: []

END OF AGREEMENT